



THE REPUBLIC OF LIBERIA

Bureau Of Maritime Affairs

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MARINE OPERATIONS NOTE: 07/2008

SUBJECT: BUNKER CLC CERTIFICATE ISSUANCE/RENEWAL PROCEDURE

**References: International Convention on Civil Liability for Bunker Oil Pollution
Damage 2001**

Dear Owner/Operator:

The purpose of this note is to provide information on the new Bunker Convention and the Liberian Flag State Administration's actions for implementation. While Liberia is not yet a Party to the Convention, the process for ratification is proceeding with decision expected well in advance of the Convention's entry into force.

The Bunker Convention was adopted to ensure that adequate, prompt, and effective compensation is available to persons who suffer pollution damage caused by spills of bunker oil on board or originating from a ship. The Convention applies to damage caused on the territory, including the territorial sea and in exclusive economic zones of a State Party.

Entry into Force and Applicability

The Bunker Convention will enter into force on 21 November 2008. The Convention requires the registered owner of a ship, having a gross tonnage greater than 1000, to maintain insurance or other financial security to cover the liability of the registered owner for pollution damage. The regime closely follows the well established liability and insurance provisions which apply to oil tankers under the Civil Liability Convention (CLC).

Vessels shall carry on board a Certificate attesting that insurance or other financial security is in force in accordance with the provisions of the Convention.

Relevant Convention Definitions:

“Ship” means any seagoing vessel and seaborne craft, of any type whatsoever.

“Shipowner” means the owner, including the registered owner, bareboat charterer, manager and operator of the ship.

“Registered owner” means the person or persons registered as owner of the ship.

“Bunker oil” means any hydrocarbon mineral oil, including lubricating oil, used or intended to be used for the operation or propulsion of the ship, and any residues of such oil.

"Incident" means any occurrence or series of occurrences having the same origin, which causes pollution damage or creates a grave and imminent threat of causing such damage.

"Pollution damage" means:

- (a) loss or damage caused outside the ship by contamination resulting from the escape or discharge of bunker oil from the ship, wherever such escape or discharge may occur, provided that compensation for impairment of the environment other than loss of profit from such impairment shall be limited to costs of reasonable measures of reinstatement actually undertaken or to be undertaken; and
- (b) the costs of preventive measures and further loss or damage caused by preventive measures.

Issuance of Bunker (BCLC) Certificate

In accordance with Article 7(2) of the Bunker Convention, the Liberian Flag State Administration will issue the Bunker CLC certificates to all applicable Liberian flag vessels. Accordingly, the Liberian Flag Administration has developed the following procedure for the issuance (and subsequent renewal) of Bunker CLC (BCLC) certificates. The procedure will be similar to the process now currently implemented by the Liberian Administration for the processing the issuance of CLC (1992 Civil Liability Convention for Oil Pollution Damage), which owners/operators of vessels carrying more than 2,000 tons of oil as cargo, are already familiar with.

For the purposes of issuance of the initial certificate (and subsequent renewal), affected vessel owners/operators are requested to provide the Liberian flag administration with the following documents no earlier than August 28, 2008 and not later than October 15, 2008:

A. Original Bunkers Blue Card issued by the vessel's P&I club recognized by the Liberian Administration; The P&I club Blue Card must be issued (and so stated thereon) in accordance with the provisions of Article 7 of the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001. The Blue Card must indicate the **Name and Address of the Principal Place of Business of ship owner.**

Note: The Administration will accept P& I Club electronic format issued blue cards, provided we can print them out in colored from a color printer.

B. An Application letter (email request) for Bunker CLC (BCLC) certificate, reflecting the name, official number and IMO number of the vessel along with the blue card/s issued by the P&I club. The Administration will accept P& I Club electronic format issued blue cards, provided we can print them out in colored from a color printer. Kindly include/specify a mailing address where to send the original Bunker CLC Certificate.

C. Payment by check, wire transfer or credit card (Instructions and form attached/enclosed) for issuance fees, made payable to **“LISCR, LLC – Maritime”**. The issuance fee for a Bunker CLC certificate is **\$200.00** per vessel plus a **\$45.00** fee for each courier shipment (excluding bank charges, if any). An invoice for courier charge will be generated later and forwarded for payment **if** the actual mailing cost exceeds \$45.00. Same applies for additional shipment.

D. Address - Please submit the abovementioned documents and fees to the following address below:

Liberian International Ship & Corporate Registry
ATTN: Bunker CLC Applications
8619 Westwood Center Drive, Suite 300
Vienna, Virginia 22182, U.S.A.
Email contact: clc@liscr.com

Tel: 1+ 703 790 3434
Fax: 1+ 703 790 5655

E. Note: For all Bunker CLC related matter, in order to receive immediate attention, please send correspondence to email: clc@liscr.com.

Timely submission of the required original document and payment will avoid delay in the processing and forwarding of the Bunker CLC Certificate/s. We will accept **email request** with electronic copies of Bunker Blue Cards that can **be printed from a color printer** to serve as original, otherwise, we will accept copies of Blue Cards to start processing the certificates while waiting to receive originals by mail. The email request should specify “Bunker CLC” on the Subject line of the email request.

F. Online Document Verification: Each Bunker CLC certificate will be issued with the Administration's Tracking Id (TID) number to enable port state officials and other parties to verify the validity of the Certificate at our website: www.liscr.com. The Document Verification is Available 24/7. **Once issued**, the original Bunker certificate with the Liberian Administration's TID Number must be carried on the vessel at all times and must be presented on demand to the authorities of any State party to the 2001 Bunker Civil Liability Convention while a certified vessel is within the jurisdiction of such State.

G. Renewal Certification – As with the 1992 CLC Convention certificate, the Liberian Bunker CLC certificates will normally be issued for a period of 12 months to cover February 20th of the current calendar year to February 20th of the following year. Therefore, in line with our understanding of the issuance of the blue cards by the P&I Clubs, the initial Liberian Bunker CLC certificate will be issued to cover the period from November 21, 2008 to February 20, 2009. Renewal subsequent to this initial certification will cover the period February 20th of 2009 to February 20th 2010.

H. Issuance of Bunker Certificate to NON-Liberian Registered Vessels: The Administration will issue Bunker CLC certificate to a vessel registered in non-Party States pursuant to provisions of the Bunker Convention, 2001. The above requirements for submission of request with the requisite P&I Club blue card applies. In addition, and for clarity, please also provide the information requested in the attached form (RLM-223C).

For questions regarding this note please contact Michael Davies-Sekle at telephone +1 703 251 2407, email: clc@liscr.com.

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